

25STCV19235 25STCV19235

County: los-angeles

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Case Number: 25STCV19235 Hearing Date: July 2, 2026 Dept: 732

Orient Europharma Co., Ltd. v. Neonc Technologies, Inc., et al.

Thursday, July 2, 2026

CASE NUMBER: 25STCV19235

OPPOSED

Plaintiff Orient Europharma Co.'s Motion to Compel Further Responses to Requests for Admission from Defendant C. Chen

Plaintiff Orient Europharma Co.'s Motions to Compel Further Responses to Requests for Admission and Requests for Production from Defendant Neonc Technologies, Inc.

Facts: This is an action for breach of contract and fraud. The Complaint alleges as follows. Plaintiff Orient Europharma Co. ("Plaintiff") entered into a Collaboration and Licenses Agreement with Defendant Neonc Technologies, Inc. ("Neonc") based on representations by its founder and CEO, Defendant Thomas Chen ("Chen") that he owned a portfolio of patents that Plaintiff could license and use to manufacture certain medical products and treatments. (Complaint ¶¶ 13–14.) Plaintiff accordingly invested \$2 million into Defendants' research efforts. (Complaint ¶ 16.) However, Defendants did not own the patents they described, which were in fact owned by nonparty University of Southern California, where Chen worked. (Complaint ¶¶ 17–18.) After the dispute came to light, the parties executed a settlement agreement, pursuant to which Defendants promised to pay Plaintiff \$4 million. (Complaint ¶ 34.) But due to Defendants' lack of liquidity, it was agreed that such payment would take place after Defendant Neonc held an initial public offering ("IPO") of its stock. (Complaint ¶¶ 32–34.) Defendants have now foregone an IPO in favor of a direct sale of stock on the NASDAQ, depriving Plaintiff of the benefit of its bargain. (Complaint ¶¶ 34–38.)

Procedural History: Plaintiff filed the Complaint on July 1, 2025, alleging nine causes of action:

Breach of Contract

Breach of Covenant of Fair Dealing

Intentional Misrepresentation

Fraudulent Inducement

Negligent Misrepresentation

Intentional Misrepresentation (Settlement Agreement)

Fraudulent Inducement (Settlement Agreement)

Civil Conspiracy

Unjust Enrichment

Plaintiff filed the present motions to compel further on March 20 and 24, 2026.

Defendants filed oppositions on June 18, 2026.

Plaintiff filed replies on June 25, 2026.

Analysis:

MOTIONS TO COMPEL FURTHER

A party may file a motion to compel further responses to inspection demands where the responses are incomplete, inadequate, or contain invalid objections. (See Code Civ. Proc. § 2031.310, subd. (a).) A motion to compel a further response to an inspection demand must set forth specific facts showing “good cause” justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Unless there is a legitimate privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance. (*TBG Ins. Services Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 444.) Once the moving party demonstrates good cause for the discovery, the burden is on the responding party to justify any objection or failure to fully respond to the inspection demand. (*Coy v Superior Court* (1962) 58 Cal.2d 210, 220.)

A motion to compel further responses to requests for admissions may be made on the grounds that an answer is incomplete or evasive, or an objection is without merit. (Code Civ. Proc. § 2033.290, subd. (a)(1)–(2).)

Plaintiff Orient Europharma Co. (“Plaintiff”) moves to compel further responses to Requests for Admissions from Defendant Thomas Chen (“Chen”) and to Requests for Admission and Requests for Production from Defendant Neonc Technologies, Inc. (“Neonc,” or collectively “Defendants”).

Defendant Chen

As an initial matter, the motion is functionally moot as to the request for admission directed to Chen. The motion was filed on March 20, 2026, and responses were filed on March 30, 2026. (Reply at p. 2.) The only remaining issue as to this motion is the question of sanctions, which Plaintiff seeks collectively for all of the five discovery motions filed on March 20, 2026. (Soo Decl. ¶ 30.)

Defendant Neonc

Plaintiff seeks further responses to Requests for Production No. 1, 10, 11, 13, 15, and 17, from Neonc. Neonc provided statements of compliance to Requests No. 1 and 13, but Plaintiff contends that these responses are not verified. (Motion at p. 11.) Plaintiff in reply acknowledges that verifications have since been provided, however, and the motion is therefore moot as to Requests No. 1 and 13.

Requests No. 10, 11, 15, and 17 are as follows. Requests No. 10 and 11 seek documents reflecting payments made to Neonc's principals, executives, board members, shareholders, and advisors resulting from Neonc's 2025 direct stock offering, and all payments to the same class of persons (excluding legal advisors) from January 1, 2023, to the present. (Separate Statement at pp. 6–8.) Neonc responded with objections as to both requests, and as to Request No. 10 stated it would "produce SEC filings showing the direct stock offering in 2025." (Separate Statement at p. 7.) Request No. 15 seek all documents related to a deal between Neonc and one Quazar Investment. (Separate Statement at p. 17.) And Request No. 17 seeks documents "sufficient to demonstrate NeOnc's access to capital during the period January 1, 2024, to the present." (Separate Statement at p. 14.) Neonc responded to these latter two requests with objections based on privacy and overbreadth. (Separate Statement at pp. 12–15.)

The requests are supported by good cause. Neonc argues that the present case concerns only whether an IPO has taken place triggering its obligation to make a \$4 million settlement payment (Opposition at pp. 2–3.) But the Complaint does not merely allege that Neonc has breached the settlement; it alleges that Neonc fraudulently induced the settlement by falsely representing that it lacked the capital to pay at the time of settling, and would obtain the necessary funds from an IPO. (Complaint ¶ 73.) Thus Plaintiff's inquiries into Neonc's access to capital in the relevant period are directly relevant to the subject matter of this litigation. This includes Request No. 15, which seeks information related to an investment deal with Quazar Investments, which would, according to Plaintiff, have resulted in a substantial infusion of cash into Neonc. (Motion at pp. 7–8.)

Thus further responses are required. Neonc argues that the request related to its disbursement of funds from its stock offerings is answered by FEC filings, and that "there remains nothing else to produce." (Opposition at pp. 3–4.) But if this is so, it does not explain why Neonc's response consisted of a mere reference to those filings, rather than a statement of compliance under Code of Civil Procedure § 2031.220. Neonc's arguments justifying its objection to Requests No. 11, 15, and 17 consists of the erroneous assertion that the only issue is whether an IPO has occurred. (Opposition at pp. 3–5.) Neonc's opposition simply does not reckon with the actual scope of the case.

The motion is therefore GRANTED as to Neonc with respect to Requests No. 10, 11, 15, and 17.

The dispute concerning Neonc's responses to requests for admissions is similar. As with the requests for production, Plaintiff complains that Neonc has failed to serve verifications, an issue which has been mooted since the filing of the motions. (Reply at p. 1.) Thus the remaining discovery at issue is Requests for Admission No. 6, 7 and 9. (Reply at p. 1.)

No further response is required for Request No. 6. This request asked Defendant to admit, "that YOU made public statements in the time period leading up to YOUR direct stock listing in or around 2025 that YOU had access to sufficient capital." (Separate Statement at pp. 6–7.) Defendant objected on grounds of overbreadth and vagueness, the latter of which is meritorious. The only allegations in the Complaint concerning the sufficiency of Neonc's access to capital concerns its insufficiency in relation to the \$4 million settlement payment. But this request does not concern that representation. It rather concerns representations of sufficiency apparently directed to third persons, related to a later stock offering, and neither the request, the Complaint, nor the moving papers denote for what purpose Neonc purportedly represented its capital was

sufficient. It is thus not clear what Plaintiff asks when it seeks Neonc's admission that it represented to others that it had sufficient capital.

The ambiguity is compounded by Plaintiff in reply, in which it states that "[access to sufficient capital] is a term that has been used by NeOnc and OEP in relation to the \$4 million that NeOnc represented it did not have access to." (Reply at p. 3.) The interpretation that Plaintiff evidently adopts in reply is thus that it seeks an admission from Neonc that it made representations to others in the course of its stock offering that it had access to sufficient capital to make the \$4 million settlement payment to Plaintiff. But this is hardly apparent from the request as it is presently framed. If this is what Plaintiff intended, then Plaintiff may prepare a request for admission so stating.

Further responses are warranted, however, as to Requests No. 7 and 9. These requests asked Neonc to admit the existence of certain features of the 2013 Collaboration and License agreement, to which Neonc responded with objections based on the grounds that they called for legal conclusions. (Separate Statement at pp. 9–10.) Neonc in opposition does not defend these objections, but argues that the 2013 Collaboration and License Agreement is not relevant to this action, which instead concerns the 2024 settlement agreement. (Opposition at pp. 4–5.) This argument rests on an egregious misreading of the Complaint, which contains nine causes of action, of which the first five expressly rely upon the 2013 Collaboration and License Agreement. (Complaint ¶¶ 39–66.) Requests related to that agreement are supported by good cause and not objectionable.

Accordingly, the motions to compel further as to Neonc are GRANTED as to Requests for Production No. 10, 11, 15, and 17, and as to Requests for Admission No. 7–9. The motions are otherwise DENIED. Further responses shall be provided without objection within 20 days of this order.

Sanctions

Statute provides that the court shall impose sanctions upon a party who unsuccessfully makes or opposes a motion to compel further response to interrogatories, requests for production of documents, or requests for admission, absent substantial justification otherwise. (Code Civ. Proc. §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).)

Plaintiff seeks \$20,082.00 in sanctions, representing six hours of attorney work at \$1,062 per hour, plus 20 hours of attorney work at \$670.50 per hour, and finally five \$60 filing fees. (Soo Decl. ¶ 30.) This amount was incurred in relation to five separate motions to compel further filed on March 20 and 24, of which only the above three remain on calendar, and which were in substantial part rendered moot by the belated service of verifications. The court concludes that Plaintiff is entitled to sanctions with respect to the motion seeking further responses to requests for production from Defendant Neonc, and as such may properly seek one fifth of the total sanctions amount requested.

Sanctions are therefore awarded against Neonc in the amount of \$4,016.40. Sanctions shall be paid within 20 days of this order.

Superior Court of California

County of Los Angeles

Department 732

ORIENT EUROPHARMA CO., LTD.,

Plaintiff,

V.

NEONC TECHNOLOGIES, INC., et al.,

Defendants.

Case No.: 25STCV19235

Hearing Date: July 2, 2026

[TENTATIVE] RULING RE:

Plaintiff Orient Europharma Co.'s Motion to Compel Further Responses to Requests for Admission from Defendant C. Chen

Plaintiff Orient Europharma Co.'s Motions to Compel Further Responses to Requests for Admission and Requests for Production from Defendant Neonc Technologies, Inc.

Plaintiff Orient Europharma Co.'s Motion to Compel Further Responses to Requests for Admission from Defendant C. Chen is DENIED as moot.

Plaintiff Orient Europharma Co.'s Motions to Compel Further Responses to Requests for Admission and Requests for Production from Defendant Neonc Technologies, Inc. are GRANTED as to Requests for Production No. 10, 11, 15, and 17, and as to Requests for Admission No. 7–9. The motions are otherwise DENIED. Further responses shall be provided without objection within 20 days of this order.

Sanctions are awarded against Neonc in the amount of \$4,016.40. Sanctions shall be paid within 20 days of this order.

Plaintiff to provide notice.

Dated: July 2, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court